



Other Than Full and Open Competition Justification

I. Contracting Activity

The Department of Justice (DOJ)'s Space and Facilities Management Staff (SFMS) on behalf of the Executive Office for Immigration Review (EOIR).

II. Nature and/or Description of the Action Being Processed

- The Executive Office for Immigration Review intent is to request a firm-fixed price sole source contract to Kids Parking Corp. for facilities located at New York Immigration Court 26 Federal Plaza, 12th Floor, Room 1237 New York, NY 10278, under the authority of ***FAR 13.501(a)(FAR -- Part 13 Simplified Acquisition Procedures / 13.501 – Special Documentation Requirements. (a) Sole Source (including brand name) acquisitions.*** The requirement is to provide up to 7 parking space for EOIR Judges with 24/7, 365 days a year access who work in offices that are located at New York Immigration Court, 26 Federal Plaza, 12th Floor, Room 1237 New York, NY 10278. The EOIR, SFMS has determined through market research that Kids Parking is the only known company and is the only known agent of the property owner capable of providing the required parking spaces within close proximity. The requested period of performance for this service is for a 12-month base period with four (4) 12-month option periods.

III. Description of the Supplies/Services Required to Meet the Agency's Needs

This requirement is for the procurement of a quantity of 8 parking space located at New York Immigration Court, 26 Federal Plaza, 12th Floor, Room 1237 New York, NY 10278 for Immigration Judges.

The period of performance for the requested spaces is for a base and 2 option years for the following dates:

1. Base Year – March 26, 2025 - March 25, 2026
2. Option Year 1 – March 26,2026 – March 25, 2027
3. Option Year 2 – March 26,2027 - March 25, 2028

The Sole Source request is based on the Kids Parking Garage's location next to the New York Immigration Court. Based on market research, there is only 1 other parking garage within a 0.1 mile radius of the New York Immigration Court's facility. None of which is within reasonable walking distance from the Immigration Court's complex. EOIR is requesting a Firm-Fixed priced contract and it is basing the cost of this request from the previous cost of the prior year's (FY24) contract.

Description	Quantity of Spaces	Period Of Performance	Estimated Cost Per month	Total
Unreserved Parking	7	March 26,2025 – March 25, 2026 12 Months	\$5,250.00	\$63,000.00
Total	7			\$63,000.00

EOIR is anticipating an increase in cost from the previous year's pricing and will increase the total on the requisition document and UFMS Requisition form (OBD-186/JPQ) for an estimated cost on both the total for the Base Year as well as the total estimated value for the entire contract (Base + 2 Option Years) for this request as follows:

1. Base Year – \$63,000.00
2. Option Year 1 - \$63,000
3. Option Year 2 - \$63,000
4. ~~Total Estimated Contract Value - \$189,000.00~~

IV. Identification of the Authority and Rationale for Limiting Sources and, if applicable Demonstration of the Contractor's Unique Qualifications to Provide the Required Supply/Service

Authority: ***FAR 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.***

EOIR's SFMS would like to procure the requested parking spaces for the New York Immigration Court on an Other Than Full and Open Competition basis due to the lack of availability of parking providers in the immediate location of the Immigration Court's location and based on the market research conducted.

The parking permits will ensure the safety of Immigration Judges working extended or unusual shifts that would have them coming/going to work at off-times in the dark. The permits will ensure that these employees will not have to walk to and from their vehicles in the dark in New York, NY which would expose them unnecessarily to potential harm.

V. Determination by the Requesting Activity COR/TL that the Order Represents the Best Value Consistent with FAR 6.302-1

In Accordance with **FAR 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements**, SFMS has determined that Kids Parking is the only vendor that can meet the requirement for the upcoming procurement of parking spaces in relation to the location of:

New York Immigration Court
26 Federal Plaza, 12th Floor, Room 1237
New York, NY 10278

VI. Description of the Market Research Conducted Among Schedule Holders and the Results or a Statement of the Reason Market Research Was Not Conducted

SFMS conducted market research and based its findings on the historical data from previous parking request and the availability of other parking garage vendors available in its immediate area. A price comparison spreadsheet is attached to the requirements documentation to support the determinations and findings of the SFMS.

VII. Other Facts Supporting the Justification

Because each facility at which we decide to acquire parking permits on a sole source basis is managed by only one firm, there is nothing we can do to increase competition at those facilities.

VIII. Actions the Agency May Take to Remove or Overcome Any Barriers that Led to the Restricted Consideration before Any Subsequent Acquisition for the Supplies or Services

None.

IX. Contracting Officer's Certification

ANDREW BYRNES

Digitally signed by ANDREW BYRNES

Date: 2025.03.14 14:11:52 -04'00'

Contracting Officer

Date

X. Technical/Requirements Personnel's Certification

LACEY STALLINGS

Digitally signed by LACEY STALLINGS

Date: 2025.03.14 14:04:39 -04'00'

Lacey Stallings, COR/TL SFMS
Technical/Requirements Personnel

Date